

Shivkumar Saitode vs State Of Chhattisgarh on 24 March, 2026

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HIGH COURT OF CHHATTISGARH AT BILASPUR

Order Reserved on : 13.02.2026
Order Delivered on : 24.03.2026

WPS No. 4792 of 2023

Shivkumar Saitode S/o Shri Sitaram Saitode Aged About 37 Years R/o
Village Gadhabhata, Post Salonikala, Police Station Bhatgaon, Tahsil
Bilaigarh, District : Sarangarh-Bilaigarh, Chhattisgarh

... Petition

versus

1 - State of Chhattisgarh Through The Secretary, Department of
Home/police, Mahanadi Bhawan, Mantralaya, Police Station And Post
Rakhi, Atal Nagar, Nawa Raipur, District : Raipur, Chhattisgarh
2 - Director General of Police (DGP) State of C.G. Police Headquarters
(PHQ), Sector 19, Police Station And Post Rakhi, Atal Nagar, Nawa
Raipur, District : Raipur, Chhattisgarh
3 - Inspector General of Police (IGP) Office of Inspector General of
Police, Shankar Nagar, Raipur Range, District : Raipur, Chhattisgarh
4 - Deputy Inspector General of Police (DIGP) And Senior
Superintendent of Police (Senior S.P.) Balodabazar, District
Balodabazar-Bhathapara, Chhattisgarh
5 - Sub-Divisional Officer (Police) Balodabazar, District : Balodabazar-
Bhathapara, Chhattisgarh

--- Respondents

(Cause-title taken from Case Information System)

For Petitioner : Mr. Ankit Singh, Advocate
For State/Respondents : Mr. Ashutosh Shukla, Panel Lawyer

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Hon'ble Shri Amitendra Kishore Prasad, Judge
CAV Order

1. Heard Mr. Ankit Singh, learned counsel for the petitioner as well as

Mr. Ashutosh Shukla, learned Panel Lawyer appearing for the State/respondents.

2. By way of the present petition, the petitioner has called in question the order/communication (Annexure P/1) issued by Respondent No. 4, whereby the petitioner has been arbitrarily removed from his posting without adherence to the due process of law. The petitioner has sought for following reliefs:-

"10.1 And any other relief, which the court deems fit and proper, may also be awarded the petitioner including the cost of the petition.

10.2 This Hon'ble Court may kindly be pleased to direct the Respondent Authorities to revive the petitioner back to his service as Police Constable in the said place of service wherein he already was posted.

10.3 This Hon'ble Court may kindly be pleased to direct the Respondent Authorities to disburse the salary which is pending since 17 months and any applicable interest thereupon.

"10.4 That, this Hon'ble Court may kindly be pleased to issue writ(s)/direction(s)/ order(s) to set-aside/quash the order dated 28.03.2023 (Annexure P/7) passed by Respondent No. 02/DGP."

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3. Brief facts of the case, in a nutshell, are that the petitioner was appointed as a Police Constable and has rendered more than eight years of unblemished service in the department. He was posted as Police Constable No. 987 at Chauki-Baya, Rajdevri Police Station, Balodabazar (C.G.). It is the case of the petitioner that ever since his appointment, he discharged his duties diligently and sincerely under the guidance of his superior officers and had

never been subjected to any punishment on account of any misconduct or irregularity during his service tenure.

4. The petitioner was married to one Komal on 29.04.2016 as per Hindu rites and rituals. After marriage, both resided together for about two years; however, due to differences of opinion, they started living separately. Subsequently, by mutual consent, their marriage was dissolved by a decree dated 13.10.2022 under Section 13(b) of the Hindu Marriage Act, 1955.
5. It is further the case of the petitioner that on 13.07.2018 and 16.08.2018, his wife submitted written complaints before the Superintendent of Police, Balodabazar, alleging that the petitioner used to consume alcohol, abuse and mistreat her, and further alleged that on the eve of Diwali he had outraged the modesty of his minor daughter. On the basis of the said complaints, a departmental enquiry was initiated against the petitioner by order dated 11.02.2019. Upon conclusion of the enquiry, by order dated 29.12.2021, the petitioner was held guilty of the charges.

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6. According to the petitioner, the findings recorded in the departmental enquiry were arrived at without affording him a fair and adequate opportunity of hearing. It is contended that he was neither granted an effective opportunity to cross-examine the witnesses nor permitted to properly defend himself, thereby violating the principles of natural justice. Thereafter, by an undated order passed by the Superintendent of Police (Annexure P/1), the petitioner was removed from service on the allegation of

misconduct under the relevant provisions of the Police Regulations.

7. Aggrieved thereby, the petitioner preferred a statutory appeal on 02.03.2022 before the competent appellate authority under the provisions of the Police Regulations and the Chhattisgarh Civil Services Rules, contending that the allegations were motivated by personal matrimonial discord and that the punishment of removal was grossly disproportionate. The said appeal came to be rejected by order dated 17.10.2022.
8. Thereafter, the petitioner preferred a further appeal before the higher authority on 06.12.2022 seeking reinstatement or imposition of a lesser punishment. On account of delay in deciding the said appeal, the petitioner approached this Court by filing a writ petition bearing WPS No.1164/2023, wherein this Court, by order dated 08.02.2023, directed the competent authority to decide the appeal within a stipulated period. Subsequently, by
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order dated 28.03.2023, the said appeal was also rejected.
9. It is the specific stand of the petitioner that the entire departmental proceedings were initiated due to personal disputes between him and his wife, which ultimately culminated in a decree of mutual divorce. It is further contended that one Nirmala Kumari Sagar, a fellow Constable, had also made a complaint stating that the petitioner's wife had levelled unfounded allegations regarding illicit relations. According to the petitioner, the complaints were actuated by mala fide intention and personal grudge, and the impugned

action of removal from service is arbitrary, disproportionate, and unsustainable in law.

10. Mr. Ankit Singh, learned counsel for the petitioner submits that the impugned order of removal is perverse, arbitrary and wholly unsustainable in law as well as on facts. It is contended that the entire departmental proceeding stands vitiated for non-compliance with the principles of natural justice, inasmuch as the petitioner was not afforded a fair and adequate opportunity to defend himself. No effective opportunity of cross-examination of the material witnesses was granted, and the findings have been recorded mechanically, thereby infringing the petitioner's fundamental right to a fair procedure. It is further submitted that the foundation of the impugned action rests upon a purely matrimonial dispute between the petitioner and his then wife, which has subsequently culminated in a decree of mutual divorce.

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The allegations, according to learned counsel, were motivated by personal discord and were never substantiated by independent or cogent evidence. The prosecution witnesses examined in the departmental enquiry were close relatives of the complainant, and no independent witness supported the charges. In absence of reliable evidence, the extreme penalty of removal from service is wholly disproportionate and shocks the conscience.

11. Mr. Singh argues that the punishment imposed is grossly excessive and not commensurate with the alleged misconduct. It is contended that even assuming the allegations to be true, the

disciplinary authority failed to consider mitigating factors, including the petitioner's eight years of unblemished service record. It is also urged that mandatory procedural requirements under the relevant Police Regulations were not adhered to. No medical examination or scientific evidence was brought on record to substantiate the allegation of intoxication, and the findings are based merely on uncorroborated statements. The learned counsel submits that family disputes per se do not ipso facto amount to misconduct warranting removal from service, particularly when criminal proceedings were never initiated and no conviction has been recorded.

12. Lastly, Mr. Singh submits that the impugned orders passed by the disciplinary as well as the appellate authorities suffer from non-application of mind and fail to consider relevant aspects, including

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the possibility of mala fide intent behind the complaint and the petitioner's overall service record. It is, therefore, prayed that the impugned order of removal and the consequential appellate orders be set aside and the petitioner be granted appropriate relief.

13. Placing reliance upon the judgments rendered by the Hon'ble Supreme Court and various High Courts, learned counsel for the petitioner submits that the impugned action is liable to be set aside on account of gross violation of principles of natural justice and proportionality. In State of A.P. and others v. A. Venkata Rayudu, (2007) 1 SCC 338, the Hon'ble Supreme Court held that a charge-sheet must be specific and not vague, and in absence of

necessary particulars and supporting documents, no finding of guilt can be sustained. Similarly, in *Kashinath Dikshita v. Union of India*, (1986) 3 SCC 229, the Apex Court categorically held that non-supply of relevant documents and denial of opportunity to effectively cross-examine witnesses amounts to violation of Article 311(2) of the Constitution of India and vitiates the entire disciplinary proceedings. Reliance is also placed upon *State of Uttaranchal and others v. Kharak Singh*, (2008) 8 SCC 236, wherein the Hon'ble Supreme Court reiterated that denial of documents and non-examination of witnesses in presence of the delinquent renders the enquiry invalid. Further, this Court in *Arun Kumar Banjare (Dead) v. State of Chhattisgarh and others*, WPS No.4055 of 2018 decided on 27.04.2023 and in *Surendra Kumar Sharma v. State of Chhattisgarh and others*, WPS

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No.3422 of 2017 decided on 10.01.2024 has set aside termination orders where the enquiry officer acted beyond his jurisdiction, relevant documents were not supplied, and reasonable opportunity of defence was denied. It is also submitted that in *State of Bihar and another v. P.P. Sharma, IAS and another*, 1992 Supp (1) SCC 222, the Hon'ble Supreme Court elucidated the concept of mala fides and held that administrative action actuated by personal bias or oblique motive cannot be sustained in law. In light of the aforesaid settled legal principles and the facts of the present case, it is submitted that the departmental proceedings stand vitiated, the punishment imposed is disproportionate and arbitrary, and the impugned orders deserve

to be quashed.

14. Reliance has also been placed upon the judgments rendered by the Hon'ble Supreme Court in the matters of State of U.P. and others v. Saroj Kumar Sinha, (2010) 2 SCC 772, Satyendra Singh v. State of Uttar Pradesh and another, 2024 SCC OnLine SC 3325, V.M. Saudagar (Dead) through Legal Heirs v. Divisional Commercial Manager, Central Railway and another, 2025 SCC OnLine SC 2277 and Monty Goyal v. Navrang Singh, 2026 SCC OnLine SC 123 to contend that the petitioner has not been given opportunity to cross-examination. He has also placed reliance upon the order passed by this Court in Yaad Das Sahu v. State of Chhattisgarh and others, WPS No.8212/2023 decided on 03.01.2025 to buttress his submissions.

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15. On the other hand, Mr. Ashutosh Shukla, learned Panel Lawyer appearing for the State/respondents, vehemently opposes the submissions advanced by learned counsel for the petitioner and submits that all adverse allegations levelled by the petitioner against the respondent authorities are specifically denied. The learned State counsel submits that the petitioner, while posted as Police Constable No. 987 at Police Station Baya, District Balodabazar, was subjected to a complaint made by his wife, Smt. Komal Saitode, alleging that he used to consume liquor, abuse and assault her and their minor daughter, and was also involved in an illicit relationship with another woman. On the basis of the said complaint, a preliminary enquiry was conducted and the

allegations were found substantiated, whereafter a regular departmental enquiry was initiated in accordance with law. It is further submitted that a charge-sheet dated 11.02.2020 was duly served upon the petitioner, to which he submitted his reply. Finding the reply unsatisfactory, a formal departmental enquiry was instituted by appointing the Sub-Divisional Officer (Police), Balodabazar as the Inquiry Officer and the Inspector, Reserve Centre, Balodabazar as the Presenting Officer. The enquiry was conducted strictly in compliance with the provisions of the Chhattisgarh Civil Services (Classification, Control and Appeal) Rules, 1966 and the relevant Police Regulations. During the course of enquiry, as many as ten prosecution witnesses were examined and cross-examined. After affording full opportunity of

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hearing, the Inquiry Officer submitted his report holding the petitioner guilty of violation of Para 64(03)(11) of the Police Regulations. A copy of the enquiry report was supplied to the petitioner and he was further afforded opportunity to submit representation against the findings before the disciplinary authority passed the order of punishment.

16. Mr. Shukla further submits that after considering the enquiry report and the representation submitted by the petitioner, the Superintendent of Police, Balodabazar, in exercise of powers under Rule 10(8) of the Rules of 1966 read with Para 221(A) of the Chhattisgarh Police Regulations, imposed the penalty of dismissal from service by order dated 15.02.2022. The said order is a reasoned and speaking order based upon appreciation of

evidence on record. The statutory appeal preferred before the Inspector General of Police was dismissed by a detailed order dated 17.10.2022 and the subsequent mercy appeal preferred before the Director General of Police was also rejected, thereby affirming the order of dismissal. It is contended that the plea of the petitioner that the dispute was purely matrimonial in nature and subsequently settled by mutual divorce is misconceived and irrelevant. The allegations against the petitioner were not confined to marital discord but constituted serious misconduct involving moral turpitude and indiscipline unbecoming of a member of a disciplined force. The learned State counsel submits that a police constable is required to maintain a high standard of discipline and

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conduct both in service and in personal life, and the misconduct proved in the enquiry justified imposition of major penalty.

17. Placing reliance upon the decision of the Hon'ble Supreme Court in B.C. Chaturvedi v. Union of India, (1995) 6 SCC 749, learned State counsel submits that the scope of judicial review in departmental matters is limited. This Court, while exercising writ jurisdiction, does not sit as an appellate authority to re-appreciate evidence or substitute its own view on quantum of punishment unless the same shocks the conscience of the Court. In the present case, it is submitted that the enquiry was conducted in accordance with law, adequate opportunity was afforded to the petitioner, and the punishment imposed is commensurate with the gravity of misconduct proved. Therefore, the writ petition being

devoid of merit deserves to be dismissed.

18. I have heard learned counsel for the petitioner as well as learned counsel appearing for the respective respondents and have perused the pleadings and documents placed on record.

19. From perusal of the departmental enquiry proceedings, it transpires that the delinquent employee, Constable No. 987 Shivkumar Saitode, was subjected to a regular departmental enquiry pursuant to a preliminary enquiry conducted on the complaint lodged by his wife, Smt. Komal Saitode. A charge-sheet was issued alleging violation of Para 64(03)(11) of the Chhattisgarh Police Regulations on two counts, namely: (i)

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consumption of intoxicating liquor and subjecting his wife to abuse and assault; and (ii) committing inhuman acts with his minor daughter while under the influence of alcohol.

20. The enquiry was conducted by the Investigating Officer, Shri Subhash Das, Sub-Divisional Officer (Police), Balodabazar, and the case of the department was presented by Inspector Ramavatar Dhruv of the Reserved Centre, Balodabazar. During the course of enquiry, as many as ten prosecution witnesses were examined, including fellow constables, local residents, and family members of the complainant. The delinquent was afforded opportunity to cross-examine the prosecution witnesses and to lead evidence in defence. The statements were recorded in his presence, exhibits were marked as Ex.P-01 to Ex. P-10, and a copy of each statement was furnished to him after obtaining his

signatures in acknowledgment.

21. The evidence of the prosecution witnesses, particularly the wife of the delinquent and her family members, was to the effect that the delinquent habitually consumed alcohol, assaulted and abused his wife, and was engaged in illicit relationships. Independent witnesses from the locality deposed regarding the smell of alcohol, frequent quarrels, and alleged misconduct. The Investigating Officer, upon appreciation of the oral and documentary evidence placed on record, returned a finding that the charges were proved. Consequently, it was concluded that the delinquent had violated

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Para 64(03)(11) of the Police Regulations by conduct unbecoming of a member of a disciplined force.

22. The enquiry report records that the delinquent was supplied a copy of the findings and was provided an opportunity to submit his representation in compliance with the principles of natural justice. Upon consideration of the entire record, the Inquiry Officer held both charges to be established and submitted the report to the disciplinary authority for further action.

23. Before proceeding further, it would be appropriate to reproduce Regulation 64(03)(11) of the Chhattisgarh Police Regulations, which reads as follows:-

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24. A bare perusal of the aforesaid Regulation 64 makes it abundantly clear that every candidate appointed to the police service is subjected to stringent standards of discipline, conduct, and moral integrity. Regulation 64(3) mandates that every appointee shall faithfully abide by all rules framed from time to time for the proper regulation of the service and shall cultivate the habit of maintaining the dignity and prestige of the office. This provision unequivocally reflects that police service is not merely a form of employment, but a position of responsibility requiring adherence to discipline, decorum, and institutional respect. The conduct of a police personnel must, therefore, align with the objectives and spirit underlying the regulatory framework governing the service.

25. Similarly, Regulation 64(11) obligates the member of the service to treat all government officers with respect and courtesy, and to act with tolerance, kindness, and civility towards members of the public. It further requires that, even in private life, the individual must set an example of peaceful behavior and remain free from all forms of bias or partiality. This demonstrates that the expected standard of conduct extends beyond official duties and permeates the personal sphere of life as well, reinforcing the principle that a police officer must uphold integrity and impartiality at all times.

26. Thus, on a conjoint reading of the above provisions, it transpires that high ethical standards, discipline, impartiality, and dignified conduct are indispensable attributes of a police personnel. Any deviation from these prescribed norms would amount to conduct unbecoming of a member of the disciplined force and would justify appropriate action in accordance with law by the competent authority.

27. It is the specific grievance of the petitioner that the departmental enquiry was conducted in gross violation of the principles of natural justice. The petitioner was not afforded a meaningful opportunity to cross-examine the material witnesses whose statements formed the sole basis of the findings recorded against him. The denial of effective cross-examination has caused serious prejudice, as the truthfulness and veracity of the allegations could not be tested. It is well settled that cross-examination is a valuable right in disciplinary proceedings, and deprivation thereof vitiates the enquiry. Therefore, on this ground alone, the impugned action stands rendered unsustainable in law.

28. In the present case, the findings of guilt are primarily founded upon statements of the complainant and her relatives, without the petitioner being granted a fair and reasonable chance to effectively test their credibility through cross-examination. The enquiry, thus, assumes the character of a one-sided proceeding, wherein adverse material was relied upon without affording the petitioner an adequate opportunity of defence. Such a procedure strikes at the very root of fairness embedded in service jurisprudence and renders the enquiry proceedings arbitrary and legally untenable.

29. In Saroj Kumar Sinha (supra), the Hon'ble Supreme Court has lucidly reiterated the foundational requirement of fairness in departmental proceedings and emphatically held that non-supply of relevant documents and statements relied upon by the disciplinary authority amounts to denial of reasonable opportunity and is violative of principles of natural justice and observed as follows :-

"34. This Court in Kashinath Dikshita v. Union of India, (1986) 3 SCC 229, had clearly stated the rationale for the rule requiring supply of copies of the documents, sought to be relied upon by the authorities to prove the charges levelled against a government servant. In that case the enquiry proceedings had been challenged on the ground that non-supply of the statements of the witnesses and copies of the documents had resulted in the breach of rules of natural justice. The appellant therein had requested for supply of the copies of the documents as well as the statements of the witnesses at the preliminary enquiry. The request made by the appellant was in terms turned down by the disciplinary authority.

35. In considering the importance of access to documents in statements of witnesses to meet the charges in an effective manner this Court observed as follows: (Kashinath Dikshita case , SCC pp. 234-35, para 10) "10. ... When a government servant is facing a disciplinary proceeding, he is entitled to be afforded a reasonable opportunity to meet the charges against him in an effective manner. And no one facing a departmental enquiry can effectively meet the charges unless the copies of the relevant statements and documents to be used against him are made available to him. In the absence of such copies, how can the employee concerned prepare his defence, cross- examine the witnesses, and point out the inconsistencies with a view to show that the allegations are incredible? It is difficult to comprehend why the disciplinary authority assumed an intransigent posture and refused to furnish the copies notwithstanding the specific request made by the appellant in this behalf. Perhaps the disciplinary authority made it a prestige issue. If only the disciplinary authority had asked itself the question: 'What is the harm in making available the material?' and weighed the pros and cons, the disciplinary authority could not reasonably have adopted such a rigid and adamant attitude. On the one hand there was the risk of the time and effort invested in the departmental enquiry being wasted if the courts came to the conclusion that failure to supply these materials would be tantamount to denial of reasonable opportunity to the appellant to defend himself. On the other hand by making available the copies of the documents and statements the disciplinary

authority was not running any risk. There was nothing confidential or privileged in it."

36. On an examination of the facts in that case, the submission on behalf of the authority that no prejudice had been caused to the appellant, was rejected, with the following observations:

(Kashinath Dikshita case, SCC p. 236, para 12) "12. Be that as it may, even without going into minute details it is evident that the appellant was entitled to have an access to the documents and statements throughout the course of the inquiry. He would have needed these documents and statements in order to cross-examine the 38 witnesses who were produced at the inquiry to establish the charges against him. So also at the time of arguments, he would have needed the copies of the documents. So also he would have needed the copies of the documents to enable him to effectively cross-examine the witnesses with reference to the contents of the documents. It is obvious that he could not have done so if copies had not been made available to him. Taking an overall view of the matter we have no doubt in our mind that the appellant has been denied a reasonable opportunity of exonerating himself."

37. We are of the considered opinion that the aforesaid observations are fully applicable in the facts and circumstances of this case. Non- disclosure of documents having a potential to cause prejudice to a government servant in the enquiry proceedings would clearly be denial of a reasonable opportunity to submit a plausible and effective rebuttal to the charges being enquired into against the government servant.

38. The aforesaid proposition of law has been reiterated in Tirlok Nath v. Union of India [1967 SLR 759 (SC)] wherein it was held that non- supply of the documents amounted to denial of reasonable opportunity. It was held as follows:

(SLR pp. 764-65) "... Had he decided to do so, the documents would have been useful to the appellant for cross-examining the witnesses who deposed against him. Again had the copies of the documents been furnished to the appellant he might, after perusing them, would have exercised his right under the rule and asked for an oral inquiry to be held. Therefore, in our view the failure of the inquiry officer to furnish the appellant with copies of the documents such as the first information report and the statements recorded at the Shidipura house and during the investigation must be held to have caused prejudice to the appellant in making his defence at the inquiry."

39. The proposition of law that a government employee facing a departmental enquiry is entitled to all the relevant statements, documents and other materials to enable him to have a reasonable opportunity to defend himself in the departmental enquiry against the charges is too well established to need any further reiteration. Nevertheless given the facts of this case we may re-emphasise the law as stated by this Court in State of Punjab v. Bhagat Ram [(1975) 1 SCC 155 (SCC p. 156, paras 6-8)] "6. The State contended that the respondent was not entitled to get copies of statements. The reasoning of the State was that the respondent was given the opportunity to

cross-examine the witnesses and during the cross-examination the respondent would have the opportunity of confronting the witnesses with the statements. It is contended that the synopsis was adequate to acquaint the respondent with the gist of the evidence.

7. The meaning of a reasonable opportunity of showing cause against the action proposed to be taken is that the government servant is afforded a reasonable opportunity to defend himself against charges on which inquiry is held. The government servant should be given an opportunity to deny his guilt and establish his innocence. He can do so when he is told what the charges against him are. He can do so by cross-examining the witnesses produced against him. The object of supplying statements is that the government servant will be able to refer to the previous statements of the witnesses proposed to be examined against the government servant. Unless the statements are given to the government servant he will not be able to have an effective and useful cross-examination.

8. It is unjust and unfair to deny the government servant copies of statements of witnesses examined during investigation and produced at the inquiry in support of the charges levelled against the government servant. A synopsis does not satisfy the requirements of giving the government servant a reasonable opportunity of showing cause against the action proposed to be taken."

30. In Satyendra Singh (supra), while dealing with the similar issue, has observed as under :-

"13. This Court in a catena of judgments has held that the recording of evidence in a disciplinary proceeding proposing charges of a major punishment is mandatory. Reference in this regard may be held to Roop Singh Negi v. Punjab National Bank and Others, (2009) 2 SCC 570 and Nirmala J. Jhala v. State of Gujarat and Another, (2013) 4 SCC 301.

14. In the case of Roop Singh Negi, this Court held that mere production of documents is not enough, contents of documentary evidence have to be proved by examining witnesses. Relevant extract thereof reads as under: -

"14. Indisputably, a departmental proceeding is a quasi-judicial proceeding. The enquiry officer performs a quasi-judicial function. The charges levelled against the delinquent officer must be found to have been proved. The enquiry officer has a duty to arrive at a finding upon taking into consideration the materials brought on record by the parties. The purported evidence collected during investigation by the investigating officer against all the accused by itself could not be treated to be evidence in the disciplinary proceeding. No witness was examined to prove the said documents. The management witnesses merely tendered the documents and did not prove the contents thereof. Reliance, inter alia, was placed by the enquiry officer on the FIR which could not have been treated as evidence.

15. We have noticed hereinbefore that the only basic evidence whereupon reliance has been placed by the enquiry officer was the purported confession made by the appellant before the police. According to the appellant, he was forced to sign on the

said confession, as he was tortured in the police station. The appellant being an employee of the Bank, the said confession should have been proved. Some evidence should have been brought on record to show that he had indulged in stealing the bank draft book. Admittedly, there was no direct evidence. Even there was no indirect evidence. The tenor of the report demonstrates that the enquiry officer had made up his mind to find him guilty as otherwise he would not have proceeded on the basis that the offence was committed in such a manner that no evidence was left.

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19. The judgment and decree passed against the respondent in Narinder Mohan Arya case [(2006) 4 SCC 713 : 2006 SCC (L&S) 840] had attained finality. In the said suit, the enquiry report in the disciplinary proceeding was considered, the same was held to have been based on no evidence. The appellant therein in the aforementioned situation filed a writ petition questioning the validity of the disciplinary proceeding, the same was dismissed. This Court held that when a crucial finding like forgery was arrived at on evidence which is non est in the eye of the law, the civil court would have jurisdiction to interfere in the matter. This Court emphasised that a finding can be arrived at by the enquiry officer if there is some evidence on record. ..."

(emphasis supplied)

15. Same view was reiterated in State of Uttar Pradesh v. Saroj Kumar Sinha, (2010) 2 SCC 772 wherein, this Court held that even in an ex- parte inquiry, it is the duty of the Inquiry Officer to examine the evidence presented by the Department to find out whether the unrebutted evidence is sufficient to hold that the charges are proved. The relevant observations made in Saroj Kumar Sinha are as follows: -

"28. An inquiry officer acting in a quasi- judicial authority is in the position of an independent adjudicator. He is not supposed to be a representative of the department /disciplinary authority/ Government. His function is to examine the evidence presented by the Department, even in the absence of the delinquent official to see as to whether the unrebutted evidence is sufficient to hold that the charges are proved. In the present case the aforesaid procedure has not been observed. Since no oral evidence has been examined the documents have not been proved, and could not have been taken into consideration to conclude that the charges have been proved against the respondents.

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33. As noticed earlier in the present case not only the respondent has been denied access to documents sought to be relied upon against him, but he has been condemned unheard as the inquiry officer failed to fix any date for conduct of the enquiry. In other words, not a single witness has been examined in support of the

charges levelled against the respondent. The High Court, therefore, has rightly observed that the entire proceedings are vitiated having been conducted in complete violation of the principles of natural justice and total disregard of fair play. The respondent never had any opportunity at any stage of the proceedings to offer an explanation against the allegations made in the charge-sheet."

(emphasis supplied)

16. In the case of *Nirmala J. Jhala*, this Court held that evidence recorded in a preliminary inquiry cannot be used for a regular inquiry as the delinquent is not associated with it and the opportunity to cross-examine persons examined in preliminary inquiry is not given. Relevant extract thereof reads as under: -

"42. A Constitution Bench of this Court in *Amalendu Ghosh v. North Eastern Railway* [AIR 1960 SC 992] , held that the purpose of holding a preliminary inquiry in respect of a particular alleged misconduct is only for the purpose of finding a particular fact and prima facie, to know as to whether the alleged misconduct has been committed and on the basis of the findings recorded in preliminary inquiry, no order of punishment can be passed. It may be used only to take a view as to whether a regular disciplinary proceeding against the delinquent is required to be held.

43. Similarly in *Champaklal Chimanlal Shah v. Union of India* [AIR 1964 SC 1854] a Constitution Bench of this Court while taking a similar view held that preliminary inquiry should not be confused with regular inquiry. The preliminary inquiry is not governed by the provisions of Article 311(2) of the Constitution of India. Preliminary inquiry may be held ex parte, for it is merely for the satisfaction of the Government though usually for the sake of fairness, an explanation may be sought from the government servant even at such an inquiry. But at that stage, he has no right to be heard as the inquiry is merely for the satisfaction of the Government as to whether a regular inquiry must be held. The Court further held as under : (AIR p. 1862, para 12) "12. ... There must therefore be no confusion between the two enquiries and it is only when the government proceeds to hold a departmental enquiry for the purpose of inflicting on the government servant one of the three major punishments indicated in Article 311 that the government servant is entitled to the protection of that article [, nor prior to that]."

44. In *Narayan Dattatraya Ramteerthakhar v. State of Maharashtra* [(1997) 1 SCC 299 :

1997 SCC (L&S) 152 : AIR 1997 SC 2148] this Court dealt with the issue and held as under:

"... a preliminary inquiry has nothing to do with the enquiry conducted after issue of charge-sheet. The preliminary enquiry is only to find out whether disciplinary enquiry should be initiated against the delinquent. Once regular enquiry is held

under the Rules, the preliminary enquiry loses its importance and, whether preliminary enquiry was held strictly in accordance with law or by observing principles of natural justice of (sic) nor, remains of no consequence."

45. In view of the above, it is evident that the evidence recorded in preliminary inquiry cannot be used in regular inquiry as the delinquent is not associated with it, and opportunity to cross-examine the persons examined in such inquiry is not given. Using such evidence would be violative of the principles of natural justice."

(emphasis supplied)"

31. Further, the very same view has been reiterated by the Hon'ble Supreme Court in V. M. Saudagar (supra), wherein the Civil Appeal was allowed and the judgment of the High Court was set aside, restoring the order of the Central Administrative Tribunal.

The Supreme Court held that where the findings in a departmental enquiry are based on non-examination of material witnesses, reliance on untested statements, absence of relevant documentary evidence, and perverse appreciation of record, interference by the Tribunal is justified. The Hon'ble Apex Court further directed release of all consequential monetary and pensionary benefits to the legal heirs of the deceased employee, thereby reaffirming that disciplinary findings unsupported by legally admissible evidence cannot be sustained.

32. Very recently, in Monty Goyal (supra), the Hon'ble Supreme Court while dealing with the scope of judicial review in disciplinary proceedings and the requirement of adherence to principles of natural justice, has observed as under :-

"9. It appears that the appellant-advocate has been held guilty of professional misconduct merely on the basis of bald allegations contained in the complaint, without the complainant being examined on oath and without affording the appellant-advocate the indefeasible right of cross-examination, thereby rendering the finding of professional misconduct legally unsustainable.

10. Thus, considering the totality of the facts and circumstances, particularly that the genesis of the dispute was a mere misunderstanding regarding the deposit of costs which stood resolved during the pendency of the proceedings, the impugned judgment cannot be sustained. Once the respondent- complainant himself expressed complete satisfaction with the professional services rendered by the appellant-advocate and categorically sought to withdraw the complaint, the very substratum of the disciplinary proceedings ceased to exist. In these circumstances, the order holding appellant- advocate guilty of professional misconduct is considered wholly unsustainable in facts as well as in law. "

33. Having bestowed anxious consideration to the rival submissions advanced by learned counsel for the parties and upon meticulous examination of the original record placed before this Court, it transpires that the entire edifice of the impugned disciplinary action rests upon allegations emanating from matrimonial discord between the petitioner and his wife. Admittedly, the matrimonial dispute subsequently culminated in dissolution of marriage by mutual consent, thereby indicating that the dispute was essentially personal in nature. There is no material on record to demonstrate that the petitioner, during his tenure as a Constable, was ever found wanting in discharge of his official duties or that any act attributable to him had adversely affected public confidence in the police administration. In order to attract Para 64(03)(11) of the Chhattisgarh Police Regulations, the conduct in question must be of such gravity so as to constitute moral turpitude or bring demonstrable disrepute to the disciplined force. A mere allegation arising out of a private matrimonial dispute, in absence of legally admissible evidence establishing grave misconduct affecting public service, does not ipso facto satisfy the threshold contemplated under the said provision. The application of the aforesaid regulation, therefore, appears to be legally unsustainable and disproportionate to the nature of accusations brought on record.

34. This Court further finds that the disciplinary proceedings are vitiated on account of patent violation of principles of natural justice. The petitioner has consistently averred that he was denied a fair, effective and meaningful opportunity to cross-examine the material witnesses, whose statements constituted the sole basis of the findings of guilt. The record reveals that the statements of the complainant and her relatives were mechanically relied upon without subjecting them to the test of cross-examination. It is trite law that cross-examination is not an empty ritual but a substantive right that enables the delinquent employee to demolish or discredit adverse evidence. The Hon'ble Supreme Court in Saroj Kumar Sinha (supra) and Kashinath Dikshita (supra) has categorically held that denial of adequate opportunity to defend, including denial of relevant documents and cross-examination, renders the entire enquiry void. The failure on the part of the enquiry officer to ensure adherence to such fundamental safeguards has caused serious prejudice to the petitioner and strikes at the very root of procedural fairness.

35. It is no doubt true that the scope of judicial review in disciplinary matters is limited; however, where the findings are based on no evidence, or where procedural safeguards are sacrificed, constitutional courts are obliged to intervene. In B.C. Chaturvedi (supra), the Hon'ble Supreme Court has recognized that interference is warranted where the punishment is disproportionate or where the procedure adopted is contrary to law. In the present case, the punishment of dismissal from service being the harshest civil consequence, has been imposed without strict compliance of procedural mandates and without establishing grave misconduct by cogent evidence. The cumulative effect of these infirmities renders the impugned action arbitrary, disproportionate and violative of Article 14 and Article 311(2) of the Constitution of India. The decision-making process, therefore, stands vitiated.

36. Consequently, in view of the foregoing discussion and the settled principles governing exercise of jurisdiction under Article 226 of the Constitution of India, this Court is of the considered opinion that the impugned order passed by respondent No.4 (Annexure P/1) suffers from manifest illegality, arbitrariness and non- application of mind. The said order having been passed in violation of the

prescribed procedure and the principles of natural justice, the same cannot be sustained in the eyes of law. The appellate order dated 17.10.2022 and the revisional order dated 28.03.2023, being consequential in nature and founded upon the very same defective reasoning, also stand vitiated and are liable to be interfered with. Once the foundation goes, the superstructure built thereupon cannot survive.

37. Accordingly, the impugned order issued by respondent No.4 (Annexure P/1), along with the consequential appellate order dated 17.10.2022 and revisional order dated 28.03.2023, are hereby quashed and set aside. The respondents are directed to reinstate the petitioner in service forthwith with continuity of service. The petitioner shall also be entitled to all consequential benefits flowing from such reinstatement, including notional seniority and other service benefits, in accordance with law.

38. However, considering the interregnum period and the fact that the petitioner has not discharged duties during that period, this Court deems it appropriate to award 50% of back wages, which shall be paid within a period of three months from the date of receipt of certified copy of this order. It shall, however, remain open to the respondents to proceed afresh in accordance with law from the stage of enquiry, if so advised, strictly adhering to statutory provisions and principles of natural justice.

39. The writ petition stands allowed in the aforesaid terms. No order as to costs.

Sd/-

(Amitendra Kishore Prasad) Judge Yogesh The date when the The date when the The date when the judgment is judgment is judgment is uploaded on the website reserved pronounced Operative Full 13.02.2026 24.03.2026 ----- 24.03.2026 Head note Interference by the Court in disciplinary matters, though limited, is warranted where the findings are based on no evidence or are perverse, where there is violation of procedural safeguards or principles of natural justice, or where the punishment imposed is so disproportionate to the misconduct as to shock the conscience of the Court.